

with all documents filed with the Court and a proof of service which complies with the Code of Civil Procedure must be filed.

As a result, both Defendants' Motion for Order Compelling Responses to Supplemental Interrogatories and Compelling Responses to Supplemental Demand for Inspection and Production of Documents, are GRANTED. Plaintiff is ordered to provide code compliant responses without objections, which include verifications, to Supplemental Interrogatories (set one) and Supplemental Demand for Inspection and Production of Documents (set one) within 10 days' notice of this order. Plaintiff is sanctioned in the amount of \$508.14 per motion, for a total of \$1,016.28. Sanctions are payable within 20 days' notice of this order.

Defendant shall prepare a form of order consistent with this ruling within 2 weeks.

5. 23CV01923 Greenberg, Stuart et al v. Jacques, Michael et al

EVENT: Plaintiff's Third Motion to Compel Further Responses to Special Interrogatories, Set One and Form Interrogatories, Set One, and Request for Sanctions

Counsel is ordered to appear and provide the Court with an update concerning the selection of a discovery referee. At the May 20 hearing the Court directed counsel to file a status report no later than June 1. However, as of this writing there is no status report on file.

Regarding the instant motion, it was filed less than one week before the hearing. Plaintiff's counsel is admonished for failing to comply with CCP 1005 which requires the motion to be filed a minimum of 16 court days before the hearing unless otherwise authorized by the Court.

This motion, along with all subsequent discovery motions, will be assigned to the discovery referee.

6. 25CV04208 Curtis-Brown, Stephanie v. Marple, Larry et al

EVENT: Plaintiff's Motion for Deemed Admissions and Request for Sanctions

Plaintiff's Motion for Deemed Admissions is moot in light of the responses provided while this motion was pending. The Court finds the responses were untimely and as a result all objections are waived.

As to sanctions, contrary to Defendant's position, the failure to timely respond can, under certain circumstances, warrant sanctions in and of itself. The critical consideration is whether or not it was reasonable for Plaintiff to file the motion at the time the motion was filed. Considering these requests were initially served in December 2025 and that a generous extension from 3/6 – 4/5 was provided, it was reasonable to file a motion two days after that extension had expired. The fact responses were not provided for roughly another 3 weeks after the motion was filed demonstrates the motion was appropriate at the time it was filed.

Defendant (not defense counsel) is sanctioned in the amount of \$2,160.00. Sanctions are payable within 20 days. Plaintiff shall prepare the form of order within two weeks.

7-8. 25CV04386 Wells Fargo Bank, N A v. Yang, Lang

EVENT:

- (1) *Plaintiff's Motion for Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted*
- (2) *Case Management Conference*

Plaintiff's Motion for Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is GRANTED. The Court will sign the proposed order.